

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Mozibur Rahman Miah
And
Mr. Justice Md. Bashir Ullah

Civil Revision No. 158 of 2017

IN THE MATTER OF:

An application under Section 115(1) of the Code
of the Civil Procedure.

And

IN THE MATTER OF:

Shah Mohammad Enamul Hoque

... Defendant-Petitioner.

-Versus-

A. K. M. Murtaza Abedin Advocate

... Plaintiff-Opposite party.

None appears.

...For the petitioner.

Mr. Kazi Shoayeb Hasan, Advocate

... For the Opposite Party.

Heard on 04.11.2024

Judgment on: 05.11.2024

Md. Bashir Ullah, J.

At the instance of defendant in Money Suit No. 06 of 2011, this Rule was issued calling upon the opposite party to show cause as to why the order dated 20.11.2014 passed by the learned Joint District Judge, First Court, Barishal in the aforesaid suit, rejecting an application filed by the defendant under Order 7 Rule 11 of the Code of Civil Procedure

should not be set aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

At the time of issuance of the Rule, all further proceedings of Money Suit No. 06 of 2011 was stayed for a period of 01(one) month which was subsequently extended from time to time and it was lastly extended on 25.12.2018 till disposal of the Rule.

The salient facts, relevant for the disposal of the Rule are:

The opposite party as the plaintiff instituted a Suit being Money Suit No. 06 of 2011 before the Joint District Judge, First Court, Barishal for a decree of compensation of Tk. 3,05,00,000/- stating *inter alia* that the plaintiff is a popular man and an elected councillor of Ward No. 2, Barishal City Corporation and an active member of Bangladesh Jaker Party, Barishal Branch while the defendant also is a resident of said Ward No. 2 and his son Arif is engaged in student politics for which political rivalry developed between them. The defendant lodged a First Information Report with Kotwali Police Station for the abduction of his son, Arifur Rahman against the plaintiff and others. Thus Kotwali Police Station Case No. 7 dated 02.06.2003 was started and police ultimately submitted the Charge Sheet and the said case was eventually sent to the Court of Sessions Judge, Barishal and the same was registered as Sessions Case No. 27 of 2006. The said Sessions case was subsequently tried by the learned Additional Sessions Judge, First Court, Barishal and after conclusion of trial, the Court however acquitted the accused

including the plaintiff on 21.09.2010, so it proves the defendant had filed a false case against the plaintiff only to harass him. Thus the plaintiff suffered loss mentally, economically and socially and the quantum of damages thus stood at Taka 3,05,00,000/-. Hence, the plaintiff instituted the above-mentioned money suit for compensation for malicious prosecution.

The defendant entered appearance in the suit and filed an application under Order 7 Rule 11 read with section 151 of the Code of Civil Procedure for rejection of the plaint stating *inter alia* that the plaint does not disclose any cause of action and the allegations made in the plaint are fabricated. The plaintiff also filed written objection against the said application stating *inter alia* that the defendant filed the criminal case falsely against the plaintiff and the plaintiff filed the suit for compensation for malicious prosecution and thus the application filed for rejection of the plaint is not maintainable.

Upon hearing the parties, the learned Joint District Judge, First Court, Barishal rejected the application filed under Order 7, Rule 11 of the Civil Procedure Code on 20.11.2014.

Being aggrieved by and dissatisfied with the order dated 20.11.2014 the defendant as petitioner filed the instant civil revision before this Court and obtained Rule and order of stay.

It is submitted in the revisional application that the plaint does not disclose any cause of action. The plaintiff along with 4 others were put

on trial before the learned Additional Sessions Judge, First Court, Barishal and the Court after conclusion of the trial acquitted them from the charge by judgment and order dated 29.09.2010 and in the order of acquittal there is no adverse finding against the defendant-petitioner as such the suit is barred under law.

It is further submitted that the plaint does not show as to how plaintiff suffered damages and hence, the plaintiff is not entitled to have any relief and thus the learned Joint District Judge, committed an error of law resulting in an error in the decision occasioning failure of justice in not rejecting the plaint.

However none appeared to support the said assertion vis-a-vis the Rule though the matter has been appearing in the list for consecutive days with the names of learned counsels for the parties.

In contrast, Mr. Kazi Shoayeb Hasan, learned Advocate appearing on behalf of the plaintiff-opposite party contends that there are no ingredients which attract the provision provided in Order 7 Rule 11 of the Code of Civil Procedure and there is no illegality, infirmity in the order of rejection passed by the trial Court and finally prays for discharging the Rule.

We have heard the learned Advocate for the opposite party, perused the Civil Revision, impugned order and other materials on record.

We have also gone through the plaint of the suit. It appears that the plaintiff filed the suit for compensation for malicious prosecution. The plaintiff described in paragraphs 2 to 4 of the plaint how he suffered damages and mentioned the quantum of such damages amounting to Taka 3,05,00,000/- in detailed and also in paragraph 5 of the plaint. The cause of action of the suit has also been disclosed in paragraph 8 of the plaint. It also appears from the record that the relief claimed by the plaintiff is properly valued and sufficient court fees has been paid on that valuation. It also turns out from the application for rejection of the plaint filed by the defendant that he failed to show as to why and under what law the suit is barred. Whether the plaintiff is entitled to compensation for malicious prosecution will be decided at trial on taking evidence.

We find no substance in the application for rejection of the plaint filed by the defendant. However for our ready reference the provision of Order VII Rule 11 of the Code of Civil Procedure is reproduced below:

Order VII rule 11 of the Code of Civil Procedure

Rejection of Plaint:

11. The plaint shall be rejected in the following cases:-

- (a) where it does not disclose a cause of action:
- (b) where the relief claimed is undervalued, and the plaintiff, on being required by the Court to correct the valuation within a time to be fixed by the Court, fails to do so:

(c) where the relief claimed is properly valued, but the plaint is written upon paper insufficiently stamped, and the plaintiff, on being required by the Court to supply the requisite stamp-paper within a time to be fixed by the Court, fails to do so:

(d) Where the suit appears from the statement in the plaint to be barred by any law.

[Provided that the time fixed by the Court for the correction of the valuation or supplying of the requisite stamp-paper shall not exceed twenty-one days].

While rejecting the application filed for rejection of the plaint filed under Order 7 Rule 11 of the Code of Civil Procedure, the learned Joint District Judge, First Court, Barishal rightly observed that the defendant did not make out any specific case why under Order 7 Rule 11 of the Code of Civil Procedure the plaint has got to be rejected and the trial Court found no cogent reason to reject the plaint. Further, the Court below after considering the materials on record and laws governing rejection of plaint correctly rejected the application thereby committed no error of law. So, the findings of the Court below are not liable to be interfered with by this Court as well.

Regard being had to the above facts and circumstances, we do not find any substance in the Rule. We find that the trial Court has committed no error of law resulting in an error in the decision

occasioning failure of justice in rejecting the application filed by the defendant-petitioner under Order 7 Rule 11 of the Code of Civil Procedure and as such the Rule is liable to be discharged.

As a result, the Rule is discharged, however without any order as to costs.

The order of stay granted at the time of issuance of the Rule stands recalled and vacated.

The learned Joint District Judge, First Court, Barishal is directed to dispose of the suit as expeditiously as possible preferably within 03(three) months.

Let a copy of this judgment be communicated to the concerned court forthwith.

Md. Mozibur Rahman Miah, J.

I agree.